



Home About CARS Lemon Law CARS in the News Resources for Car Buyers STOP Killer Cars Blog ENHANCED BY Go



Stopping auto dealers from selling, renting or loaning unsafe, recalled used cars to consumers

California's auto lemon law under attack CARS leads fight to save protections for lemon owners

ACTION ALERT:

Did you pay extra for a car with a warranty from the manufacturer, but now you're experiencing serious problems the manufacturer is failing to fix? Is the dealer telling you they can't duplicate the problem, or you must be driving the car wrong, or there is no fix available? You are far from alone. Unscrupulous auto manufacturers like [Ford](#) and [General Motors](#) face billions of dollars in warranty costs, mostly due to poor quality control. They have a bad habit of rushing vehicles to market without waiting to make sure they are actually ready to drive. Many of the problems stem from faulty software, which is often difficult to troubleshoot and takes expensive, highly specialized software engineers to pinpoint and fix.

Instead of living up to their warranty promises, Ford and GM are on the attack against California's auto lemon law, making it harder to get problems fixed under warranty. What can YOU do to fight back?

Call your state legislators who represent you in Sacramento and tell them about your auto lemon experience. Urge them to "Stop the attack on California's auto lemon law." [Here's where to find](#) your state representatives' contact information. It's simple. Just enter your home address. Every phone call makes a difference. The only way the law is going to change is for YOU to make your voice heard.

It's true that it's tough to win against powerful special interests like GM and Ford and their small army of well-connected lobbyists. Every time CARS has succeeded in improving California's auto lemon law, like when we expanded the lemon law to protect small business owners and individual self-employed folks including landscapers, florist shops, carpet cleaners, and real estate agents, it was a lot of work and a real fight. But thanks to people like you who took the time to have their voices heard in Sacramento, we won. You might be surprised at how powerful your voice can be, when you are part of a movement that includes ticked off lemon owners from all over the state. When enough lemon owners speak up, we win.

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C.A.R.S. Mission

CARS is a national, award-winning, non-profit auto safety and consumer advocacy organization working to save lives, prevent injuries, and protect consumers from auto-related fraud and abuse.

THANK YOU!

to everyone who has supported CARS' work, including the more than 589,000 people who have contributed financially to CARS, and signed or shared CARS' petitions. YOU are helping save precious lives!!

[Donate here](#)



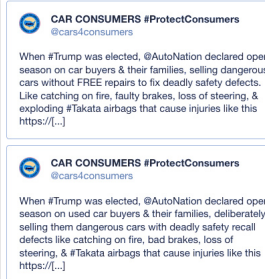
Follow us on [BlueSky](#), Social.

Thanks!

Twitter blocked our [original CARS account](#) because we told the truth about dangerous recalled cars, Trump, and AutoNation



Here are the two tweets Twitter censored:



Read more at American Prospect: ["What's Up With Twitter's Content Moderation Policies?"](#)

GM, Ford, Chrysler / Stellantis attack California's auto lemon law

DANGER!!!

Governor Newsom signed legislation backed by GM, Ford, and Chrysler that will drastically weaken protections for tens of millions of Californians who own seriously defective lemon cars. He also called for more changes to California's lemon law that would allow auto manufacturers to opt out of new provisions aimed at streamlining the process for resolving lemon law complaints.

Read more:

CalMatters: <https://calmatters.org/politics/2024/10/lemon-law-consumer-protections-newsom/>

Governor's Signing Message: <https://www.gov.ca.gov/wp-content/uploads/2024/09/AB-1755-SIGNING-Message.pdf>



September 4, 2024

Honorable Gavin Newsom
Governor, State of California
State Capitol
Sacramento, CA 95814

Re: AB 1755 (Umberg / Kalra) – Request for VETO

Dear Governor Newsom:

On behalf of each of our organizations, we respectfully request that you VETO AB 1755 because it would weaken California's landmark auto lemon law, which is widely known as a model for other states.

Who Does California's Auto Lemon Law Protect?

- Typically, over two million new car, truck, and SUV buyers each year

- Millions of used car buyers and owners of older vehicles covered by the manufacturer's warranty
- More than 157,000 active duty U.S. Military Servicemembers and their families
- Many millions of small businesses and individual entrepreneurs, such as landscapers, florist shops, carpet cleaners, real estate agents, and other businesses with 5 or fewer vehicles
- Over 27 million licensed vehicle owners, bike riders, and pedestrians who share the roads

California's Auto Lemon Law Helps Create High-Paying Jobs

- Thousands of automotive technicians, including union members, have jobs in California that cannot be outsourced, performing warranty and safety recall repairs
- Thousands of other workers, including union members, have jobs designing, developing, producing, and distributing warranty repair parts

California's original Lemon Law, known as the Song-Beverly Consumer Warranty Act, was signed into law by Governor Ronald Reagan in 1970. Why is California's Auto Lemon Law facing an unprecedented, brazen new attack now?

- A few auto manufacturers produce millions of seriously defective, often unsafe, vehicles each year. For example, according to *Automotive News*¹, last year Ford paid \$1.9 billion in warranty costs and led the entire auto industry in numbers of recalled vehicles, issuing 56 recalls involving 5.7 million vehicles.
- Currently, there are over 5 million vehicles on the roads in California with hazardous unrepaired safety recall defects such as brake failure, loss of steering, catching on fire, and exploding Takata airbags that cause blindness or bleeding to death

CarMax sells cars with
deadly safety recall defects.

ABC's 20/20 went undercover and caught
CarMax up to their sneaky tricks.

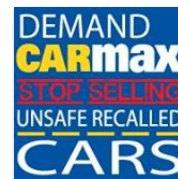
ABC 20/20: CarMax C...



More than 787,000 viewers have watched this
video clip on CARS' YouTube channel

Help save lives -- share the link!

Take Action



Sign C.A.R.S.' petition (so far, signed
by over 117,000 people like you):
[Tell CarMax to stop selling unsafe,
recalled cars to consumers](#)

Take Action



Learn more
about the
[CARS Foundation](#)

Help tell the
world that
[We NEVER
Surrender!](#)



Visit [StopKillerCars.org](#) today!

**Buyer Beware! Auto dealers use
forced arbitration
to get away with cheating customers**

Even when car dealers flagrantly violate consumer protection laws, you may not be able to get justice. That's because almost 100% of car dealers stick "forced arbitration" clauses into their contracts. If they cheat you, and you try to take them to court, they can just laugh at you. That's because they can get your case kicked into arbitration -- a secret, rigged process that favors big, corrupt lawbreakers. The dealer often gets to choose the arbitration firm, and even the arbitrator who hears your case. Unlike judges, arbitrators are perfectly free to ignore the law.

Dealers claim that arbitration is quick. But Jon Perz in San Diego had to wait over 8 years in "arbitration limbo" before he finally got justice, after Mossy Toyota sold him an unsafe car. CARS produced a short video exposing what happened. More than 1.3 million people have watched our video on YouTube:

Used car nightmare – ...



See the billboard CARS displayed
right next to Mossy Toyota's car lot,
and read more about how Jon finally won.
[UsedCarNightmare.org](#)

- Some high-volume auto manufacturers fail to make the necessary investments in producing safe, reliable vehicles, while making them increasingly complex and computerized
- The U.S. has a severe shortage of skilled software engineers and automotive technicians to troubleshoot defects and computer glitches, develop fixes, and perform warranty repairs
- Auto manufacturers seek to divert investment dollars from honoring their warranties on vehicles they already sold, into developing new models – particularly autonomous vehicles, which threaten to cost millions of jobs
- More lemon law attorneys are representing lemon owners whose first language is Spanish or another non-English language

¹ "Ford uses AI to squash squish tube defects," Automotive News, May 27, 2024

For more perspective on auto lemon litigation in California, see The California Auto Lemon Index,² which shows which auto manufacturers are sued the most / least for failing to honor their warranties, based on their market share in our state.

If you or your staff have any questions, or would like to discuss this issue, please contact Rosemary Shahan, President of Consumers for Auto Reliability and Safety (CARS), at 530-759-9440.

Thank you for your consideration of our views.

Respectfully submitted,

Rosemary Shahan
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Consumers for Auto Reliability and Safety

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Sally Greenberg
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Public Counsel

John Van Alst
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Working Cars for Working Families
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Rise Economy

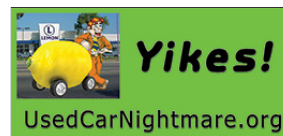
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Housing and Economic Rights Advocates

² 2022 California Auto Lemon Index, by CALPIRG Education Fund, CARS Foundation, and Frontier Group, posted at: <https://www.carsfoundation.org/lemon-index-2022.htm>.



DONATE NOW



UNITED STATES SENATE

For Immediate Release
March 22, 2024

**BLUMENTHAL, MARKEY, & WARREN INTRODUCE LEGISLATION
TO PROTECT CAR BUYERS & BOLSTER SAFETY OF USED CARS**

[WASHINGTON, D.C.] – U.S. Senators Richard Blumenthal (D-CT), Edward J. Markey (D-MA), and Elizabeth Warren (D-MA) introduced legislation today to ensure the safety and reliability of used cars. The legislation, the *Used Car Safety Recall Repair Act*, requires car dealers to repair any outstanding safety recalls in used cars prior to selling, leasing, or loaning them to consumers. Current federal law does not prohibit car dealers from selling cars with open recalls, threatening the safety of everyone on the road. The *Used Car Safety Recall Repair Act* addresses this gap in consumer protections and better safeguards car buyers who often believe they are purchasing a vehicle with safety assurances.

"This bill makes sure that used cars with dangerous defects are repaired before they are driven on our roads," said Blumenthal. **"While many people believe the used cars they are purchasing are safe and reliable, that is all too often not the case. The *Used Car Safety Recall Repair Act* closes this glaring safety loophole, ensuring consumers have peace of mind when they get behind the wheel."**

"Whether a car is brand new or used, nobody should be at risk of purchasing an unsafe car," said Markey. **"And it doesn't matter if a car is still on the lot or in a driveway, it needs to be made safe. I am proud to work alongside Senators Blumenthal and Warren on this important legislation to ensure unrepaired cars, subject to an outstanding recall, remain off our roads. Let's close this loophole so that drivers, passengers, and pedestrians are safe once and for all."**

With over 35 million used cars purchased in the United States in 2023, bolstering the safety of used cars remains an increasingly pressing issue. The *Used Car Safety Recall Repair Act* prevents the sale of used vehicles with safety defects by prohibiting auto dealers from selling, leasing, or loaning vehicles with unrepaired open recalls to consumers.

To ensure that open recalls are repaired, the *Used Car Safety Recall Repair Act* incentivizes auto dealers to swiftly repair recalls by allowing them to sell recalled vehicles to other dealers who have the ability to fix the defects instead of sitting in their lots. The legislation also requires manufacturers to provide dealers with parts to repair safety defects within 60 days or reimburse dealers if the manufacturers cannot provide the necessary parts.

The *Used Car Safety Recall Repair Act* is supported by a number of auto safety and consumer groups, including Consumers for Auto Reliability and Safety, Center for Auto Safety, Consumer Reports, Consumer Action, Advocates for Highway and Auto Safety, MASSPIRG, USPIRG, Safety Research and Strategies, Public Citizen, and Consumer Federation of America.

"No one should have to worry when they buy a car from a dealership that the dealer is deliberately selling them a hazardous, defective recalled deathtrap -- whether it's new or used. Senator Blumenthal's bill is crucial for helping protect America's used car buyers and their families from suffering devastating injuries or being killed. While used car buyers and their surviving family members do have important rights under state laws, those may not kick in unless someone has suffered damages or died. We still need NHTSA to be able to crack down on dealers who violate federal law, to help prevent tragedies from happening," said Rosemary Shahan, President of Consumers for Auto Reliability and Safety.

"Millions of unrepaired and dangerous recalled vehicles are operated on America's roads every day, threatening drivers, passengers and other road users. The widespread practice of selling these dangerous vehicles without first fixing obvious and identified safety hazards unacceptably shifts the burden from manufacturers and used car sellers onto the party least equipped to address the danger – the consumer. The *Used Car Safety Recall Repair Act* incentivizes manufacturers to get recall repairs completed quickly and protects everyone on the road by closing the federal loophole permitting the sale of unrepaired recalled used cars," said Michael Brooks, Executive Director of Center for Auto Safety.

William Wallace, associate director of safety policy for Consumer Reports, said, **"At the bare minimum, people should be able to trust that a used car they're buying is not coming to them with known, unrepaired safety defects—and right now, that's not assured. Consumer Reports strongly supports the *Used Car Safety Recall Repair Act*. We urge every member of Congress to support the bill and press for it to become law expeditiously."**

"Many consumers will never buy a new car, and second-hand cars should not mean second-rate safety. An unrepaired safety recall can put road users at risk of death or injury, yet these tragic occurrences can be prevented by repair before resale. We commend Senators Richard Blumenthal, Ed Markey, and Elizabeth Warren, for reintroducing the *Used Car Safety Recall Repair Act* which ensures commonsense actions to keep vehicles with unrepaired recalls off the roads," said Tara Gill, Senior Director, Federal and State Government Relations, Advocates for Highway and Auto Safety.

"This bill will put the brakes on the sale of dangerous used cars," said Deirdre Cummings, MASSPIRG's legislative director. **"Consumers, rightly so, have the expectation that when shopping at used car dealerships they are being sold safe cars, and at the very least, they certainly would not expect for sale any car that is still under a safety recall."**

"New cars can't be sold with an open recall, why should used cars be an exception? This bill is important to close the gap on safety and protect buyers," says longtime safety advocate Sean Kane, of Safety Research & Strategies.

The full text of the bill can be found [here](#).

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Follow Senator Blumenthal online:



CONSUMER ADVOCATES APPLAUD FTC FOR MOVING FORWARD WITH CARS RULE

December 12, 2023 | Press Release

WASHINGTON, D.C. – The Federal Trade Commission (FTC) announced its [final rule](#) targeting deceptive conduct in the sale and financing of motor vehicles, titled the "Combating Auto Retail Scams" (CARS) Rule.

After a decade of attempts to fix a broken auto marketplace, the FTC announced in July 2022 that it was pursuing an auto dealer rule aimed at ending bait and switch pricing tactics and junk fees in the form of worthless add-on products and services. After receiving over 25,000 comments from the public and widespread support for addressing auto dealer misconduct, the FTC has published its final rule, summarizing the comments and laying out its plan for the CARS rule.

"The time is long overdue for the FTC to level the playing field for car buyers and honest dealers," said **Erin Witte, Director of Consumer Protection at Consumer Federation of America**. "The CARS Rule will bring some improvements to the auto market, and we look forward to working with the FTC to ensure that all consumers, especially those in vulnerable populations, are prioritized throughout the process."

The CARS Rule prohibits misrepresentations about key information, like price and cost, and requires dealers to provide the offering price, tell consumers add-ons are optional, and give information about the total payment when discussing monthly payments. The rule also prohibits dealers from charging for any add-on that has no benefit to the consumer.

"We applaud the FTC's efforts to help millions of Americans through the use of its rulemaking authority to bring a level of transparency to auto sales," said **John Van Alst, senior attorney at the National Consumer Law Center and Director of its Working Cars for Working Families Project**. "We look forward to continuing to work with state and federal policymakers to address discriminatory practices and bring transparency to the car sales and finance markets."

The Rule also includes clear protections for members of the military and their families who are targeted with deceptive information about whether dealers are affiliated with the military and face other issues specific to servicemembers.

"The FTC has taken the courageous step of addressing the top consumer complaint in the country: auto sales," said **Rosemary Shahan, President of Consumers for Auto Reliability and Safety**. "This rule should benefit both consumers and honest car dealers, who wrote in support of the proposed rule and complained about being at a competitive disadvantage because of unscrupulous car dealers who lure car buyers with false promises of low prices, then jack them up using sneaky tactics."

"Consumers are beyond frustrated with the deceptive practices some unscrupulous dealers use to jack up the price of cars," said **Chuck Bell, advocacy programs director for Consumer Reports**. "The FTC's new rule will protect consumers from shady bait and switch sales tactics and help ensure that car dealers provide fair and accurate prices for vehicle purchases."

The CARS Rule will take effect on July 30, 2024. The FTC has created new guidance for consumers to help them understand their rights when they buy a vehicle as well as guidance for auto dealers with advice to help them prepare for the rule to go into effect.

"We know all too well how car buyers across the country are ripped off by unscrupulous auto dealer sales and financing tactics," said Christine Hines, legislative director at National Association of Consumer Advocates. "We appreciate that the FTC has taken action to provide protections for consumers in this market."

"We are thrilled that the Federal Trade Commission has issued its CARS rule today bringing some badly needed consumer protections to Americans looking to buy or lease a vehicle," said **Mitria Spotser, vice president and director of federal policy at the Center for Responsible Lending**. "This rule will help curb dishonest sales and financing practices in the industry. The steep rise in automobile prices over the past few decades means we need to be doubly vigilant of junk charges and financing scams, especially given current interest rates."



PUBLIC JUSTICE
IMPACT. CHANGE.



The Center for Auto Safety
Your Independent Voice for Auto Safety, Quality, & Fair Financing

Pro-consumer / auto safety organizations urge Governor Newsom to VETO Bill backed by debt collectors and auto manufacturers Unprecedented Attack on Low and Moderate Income Californians

NEWS for IMMEDIATE RELEASE: October 4, 2023

Contacts: Rosemary Shahan, CARS, 530-759-9440
Michael Brooks, Center for Auto Safety, 202-328-7700 x 408
Megan Varvais, Public Justice, 510-566-7768

SACRAMENTO, CA - A large coalition of leading non-profit consumer and auto safety organizations based in California and Washington, D.C. [is urging Governor Newsom to veto](#) legislation backed by debt collectors and auto manufacturers who seek to evade being held accountable for engaging in illegal debt collection practices or selling seriously defective lemon cars.

The bill, SB 71, is authored by Senator Tom Umberg (D-Santa Ana) and co-authored by right-wing Republican Assemblymember Bill Essayli. SB 71 would significantly increase the dollar amount for legal disputes in "limited" civil courts, where consumers face numerous procedural barriers and often lack any legal representation, from \$25,000 to \$35,000.

If SB 71 is enacted, millions of low and moderate-income victims of illegal debt collection practices or defective auto lemons would lose access to "unlimited" civil courts where currently they can get the legal discovery they need to prove their cases. Hapless consumers would also find it difficult or impossible to obtain

legal counsel when they are up against giant corporations with legions of attorneys on their side.

The [Alliance for Automotive Innovation wrote in favor of SB 71](#) that it would "reduce litigation," fulfilling one of the Alliance's top priorities – denying auto lemon owners access to courts where the consumers almost always win.

"No other California governor has signed legislation to weaken California's landmark auto lemon law," said Rosemary Shahan, President of Consumers for Auto Reliability and Safety (CARS). The original auto "lemon law" was signed into law by former Governor Ronald Reagan in 1970.

Since then, Democratic Governors Jerry Brown and Gray Davis, and Republican Governors Pete Wilson and Arnold Schwarzenegger all signed legislation spearheaded by CARS to improve and expand California's auto lemon law – including strengthening protections against lemons with life-threatening

safety defects, protecting small business owners and self-employed individuals such as real estate agents and landscapers who need safe, reliable vehicles to make a living and to keep their businesses afloat, and to protect active duty military personnel and their families who are stationed in or deployed from California, regardless where they purchased their lemon autos.

"If Governor Newsom signs SB 71, auto lemon owners who buy defective cars in California for less than \$35,000 will suddenly go from having some of the best lemon-aid in the country to having some of the worst," said Michael Brooks, Executive Director of the Center for Auto Safety.

SB 71 also threatens to inflict disparate harm on Black and Hispanic consumers. According to research into California's civil courts, "Cases filed in California courts to collect consumer debts disproportionately burden Black and Hispanic borrowers. Data drawn from civil court records show that claims to collect defaulted consumer debts are filed at a higher rate against borrowers of color than against white borrowers. The type of creditor also varies by the borrower's race and ethnicity. Black and Hispanic litigants are also less likely to be represented by an attorney. The distribution of case participation and outcome also varies by race, with fewer answers filed and more judgments entered against Hispanic and Black defendants." ¹

Among the procedural barriers in "Limited" civil courts:

- Severe limitations on discovery
- Severe limitations on depositions (with rare exceptions, only one)
- Drastically reduced time period for filing appeals, from 60 days to 30 days
- Lack of access to appellate courts for appeals
- Lack of authority to provide injunctive relief
- Lack of access in many cases to civil penalties or punitive damages, which would otherwise serve to help deter violations of the law
- Arbitrary cap on damages that a jury or judge can award, even if appropriate damages would exceed the jurisdictional amount

The official Assembly Judiciary Committee analysis of SB 71 says that it is supposed to "provide an accessible forum for resolving minor civil disputes." But as Megan Varvais, speaking on behalf of Public Justice, points out, "for most Californians, \$35,000 is not a minor amount of money. California consumers need and deserve the full protection of the law."

[According to J.D. Power](#), complaints about new motor vehicles have risen sharply, with more consumers complaining about problems due to faulty electronics and errors in software.

[Spanish-language information about SB71](#) and steps consumers can take to help make the case for a veto, provided by a prominent lemon law firm that represents many lemon owners.

¹ "The Unequal Burden of Debt Claims: Disparate Impact in California Debt Collection Cases," by by Claire Johnson Raba, Debt Collection Lab, July 30, 2023, page 1. Posted at: <https://debtcollectionlab.org/research/unequal-burden-of-debt-claims>.

Auto manufacturers attack California's landmark auto lemon law Pro-consumer / auto safety organizations urge Gov. Newsom to veto SB 71

Auto manufacturers who produce seriously defective vehicles are backing legislation on Governor Gavin Newsom's desk that would drastically weaken the ability of hapless victims of lemon automobiles to use California's auto lemon law to get a refund. If Governor Newsom signs the bill (SB 71) into law, millions of California vehicle owners would face a much higher risk of being stuck with lemon autos that are often unreliable and unsafe to drive.

[In a letter sent to legislators in Sacramento](#), the Alliance for Automotive Innovation -- the trade association for dozens of international auto manufacturers -- argues for passage of SB 71, authored by Senator Tom Umberg (D-Santa Ana), the powerful Chair of the California State Senate Committee on the Judiciary. SB 71 would take away the ability of lemon owners who purchased their seriously defective vehicles for less than \$35,000 to access "unlimited civil" courts, where they can easily get legal representation -- usually at no cost to them -- and may be awarded up to double their damages as a civil penalty, if they win and prove that the manufacturer's refusal to promptly comply with the lemon law was "willful."



Auto manufacturers are attacking protections for California consumers with seriously defective lemon cars.

Instead, consumers whose vehicles cost less than \$35,000 would be forced to submit their cases to "limited civil" courts where they would face a number of procedural hurdles that usually make it impossible for them to win. For example, they are unlikely to be able to get enough discovery to prove their case. This means that scofflaw auto manufacturers who produce faulty lemon

cars priced below \$35,000 would be able to get away with foisting them off on California car buyers and refusing to honor their warranties and fix them. Thus, auto giants would save potentially tens of millions of dollars in auto repair costs they would otherwise have to spend to fix problem cars under warranty.

If Governor Newsom signs SB 71 into law, he would be the first California governor to weaken protections for California's new and used car buyers under California's landmark auto lemon law, widely regarded as the best in the nation. In the past, governors of both major political parties, democrats and republicans alike, have signed bills to improve and expand protections against defective lemon cars, starting with Governor Ronald Reagan, who signed California's Song-Beverly Consumer Warranty Act -- the original "lemon law" -- in 1970.

The timing couldn't be worse, since consumer surveys show increasing dissatisfaction and complaints about major defects in new vehicles, which are prone to a whole host of problems caused by faulty electronics and software programming. According to J.D. Power's annual survey of initial quality among motor vehicles:

"In the IQS, J.D. Power ranks automakers based on verified-owner responses, calculating for each a problems-per-100-vehicles (PP100) score. Looking at recent study results, the number of problems increased by 18 PP100 between 2021 and 2022 and climbed a massive 30 PP100 from 2022 to 2023. That's nearly 50 PP100 combined in just two years. Automakers are seeing more persistent problems with their new technologies." -- [New Tech Drives Major Increase in Vehicle Quality Issues](#), JD Power report June 22, 2023.

According to the official analyses of SB 71, the only supporters are debt collectors and auto manufacturers and suppliers.

CARS and other non-profit organizations who give consumers a voice in the legislative process are fighting back. We're urging Governor Newsom to veto SB 71. [Here's our letter to Governor Newsom](#). The more Californians the Governor and his staff hear from, the better.

ACTION ALERT!!

**Save YOUR right to fight back against greedy auto manufacturers
Don't let auto giants stick you with an unsafe, defective lemon car
Save California's auto lemon law - act NOW!!**

What can you to make YOUR voice heard and save California's auto lemon law, so you can fight back when your "dream car" turns out to be a lemon?

Send a brief personalized e-mail message to California Governor Gavin Newsom, [here](#). Under topic, choose "An active bill" and then "SB 71". Where it asks for your position, choose "CON." In your comments, let the Governor know that you live in California and urge him to VETO SB 71. Use your own words to explain why. For example, "I spent over \$30,000 to buy a brand new car, and it was in the shop for repairs for over two months. Ford refuses to buy it back. California needs a strong auto lemon law. Don't weaken it. I urge you to VETO SB 71."

BEWARE: Your family's safety is at risk

**Greedy car dealers threaten lives, downplay the risks posed
by deadly safety recalls**

Don't be tricked into buying a deathtrap on wheels

When car dealers want to make a killing by selling you a dangerously defective car at top dollar, can you trust them to tell you the truth about how hazardous it is?

Nope. Car dealers know that if you are aware how serious the safety recall defects are, chances are very good you won't buy that car, and that would cut into their profits.

So if a car dealer tells you anything at all about the safety recall defects, they usually try to trick you into thinking they're nothing to worry about. Just something minor. But don't fall for it. In reality, safety recall defects are often deadly. They injure and kill car buyers and their children, other family members, and other victims at an alarming rate.

But that doesn't stop car dealers from seeking to profit from selling the hazardous cars without bothering to get the free safety recall repairs done first.

CarMax: Multi-billion \$\$ Scamster

CarMax is the largest retailer of used cars in the U.S. It's a multi-billion \$\$ company that routinely sells vast numbers of hazardous recalled cars and has some of the worst practices in the used car industry.

CarMax Board Chairman downplays risks posed by hazard...



In a shocking video, CarMax's former CEO / current Board President Tom Folliard minimizes the risks posed by safety recalls, while speaking at a public forum hosted by Florida Tech that included many college students, who are at high risk of being injured or killed in a car

crash. In fact, for most of them, a car crash is the most likely cause of death for their age group.

After boasting about his lucrative career at CarMax, Folliard (estimated net worth: "[at least \\$125 million](#)") took questions from the audience. When asked about how CarMax handles safety recalls, his response was stunningly reckless and misleading.

First, he said that because CarMax is not a manufacturer, they can't fix safety recalls.

Is that true? Yes and no. It's true that CarMax isn't a manufacturer. But it's false to say that means that CarMax can't get safety recalls fixed. All CarMax has to do, is hire some more employees to take the recalled cars to nearby dealerships that are authorized by the manufacturer to perform safety recall repairs. And get this: the repairs are free, for at least 15 years from when the recall was issued. So there's really no excuse for CarMax to neglect this vitally important step, especially when they advertise that all their vehicles must pass a rigorous inspection. They're just too cheap to hire enough employees to do the job.

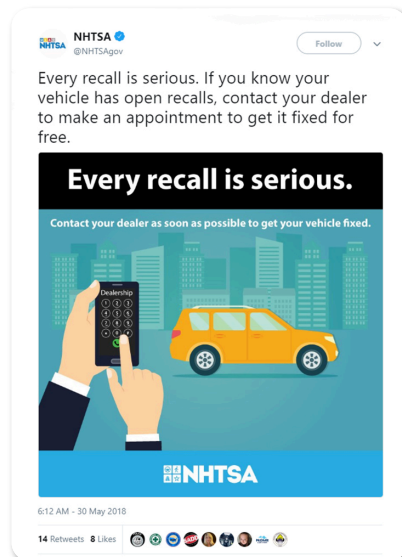
Worst of all, Folliard downplayed the risks posed by safety recall defects, telling the audience:

"Many of them are not really safety issues, they're just open recalls. But because of all the consumer movement around it, they're all considered safety recalls."

Is that true? NO!!!

Let's look at the facts.

According to the National Highway Traffic Safety Administration, ALL safety recall defects are serious.



Tragically, unrepaired safety recall defects continue to cause thousands of horrific, debilitating injuries and kill people.

Typical safety recall defects include:

- catching on fire - some people have burned to death
- loss of steering, including steering wheels that literally come off in the driver's hands
- faulty brakes that can cause a crash
- sticking accelerator pedals that cause cars to speed out of control
- seat belts that fail to work when they're needed in a crash
- child safety seat latches that come undone in a crash
- Takata airbags that explode with excessive force and propel metal shrapnel into drivers' and passengers' face, neck and torso, often causing blindness or bleeding to death

The U.S. Federal Trade Commission warns consumers about the hazards posed by unrepaired auto safety recalls

"Unrepaired auto recalls pose a serious threat to public safety. Car manufacturers and the National Highway Traffic Safety Administration have recalled tens of millions of vehicles in each of the last several years for defects that pose significant safety risks to consumers. In 2015, for example, recalls affected 51 million vehicles nationwide. And defects that have been the subject of recalls have led to severe injuries and even death for many consumers."

Source: [Statement of the Federal Trade Commission Concerning Auto Recall Advertising Cases \(December 15, 2016\)](#)



The U.S. Federal Trade Commission warns: "Unrepaired auto recalls pose a serious threat to public safety."



Mike Jackson, CEO of AutoNation, talks candidly about safety recalls. Source: Tramel33166 at English Wikipedia, CC BY-SA 3.0, via Wikimedia Commons

Who else warns about how dangerous safety recalls are? It isn't only government officials and safety experts. It's also industry insiders, such as the CEO of CarMax's #1 competitor, AutoNation, the largest new car dealership chain in the U.S.

Mike Jackson, the CEO of AutoNation, told Automotive News:

"These are not that the wrong tire-pressure sticker is on the car or some other little minor item....These are significant safety recalls, and we feel the time has passed that it's appropriate to take a vehicle in trade with a significant safety recall and turn around the next day and sell it to consumers."

— AutoNation CEO Mike Jackson, quoted in Automotive News, "Used-Car Loophole Tightens up," February 8, 2016.